

**TRINITY ALPS FARMS, INC. v BARRETT FARMS, LLC, et al**

**24CF14779**

**PLAINTIFF'S MOTION TO DETERMINE APPEARANCE AND  
FOR ENTRY OF DEFAULT/PLAINTIFF'S MOTION TO COMPEL**

This case involves a contract dispute involving an agreement to purchase two 40-ft freezer container units from Defendants by Plaintiff.

Now before the Court are two motions filed by Plaintiff: 1) Motion to Determine Appearance and For Entry of Default and 2) Motion to Compel.

The Motions do not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

**Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]**

Failure to include this language In the notice may be a basis for the Court to deny the motion.

Plaintiff was previously admonished about the need to comply with this local rule. (Ruling 5/9/25.) Plaintiff is now warned that future failures to comply with rules of court and procedure may result in the denial of motions with prejudice, and possible sanctions.

Plaintiff also filed a single motion to compel when in reality the motion is three separate motions to compel different types of discovery. A party moving to compel discovery must file a separate motion for each type of discovery sought. (*Dunbar v. Mir Fashion, LLC* (2025) 2025 Cal.Super. LEXIS 4391.)

Finally, the motions do not comply with Code Civil Procedure section 1005(a) because the notices of motion were not served at least sixteen (16) calendar days ahead of the hearing date.

The motions are **DENIED**, Without Prejudice.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

**10:00 a.m. Calendar**

**MATTER OF THE LORA J. OSTROM TRUST**

**25PR8868**

**PETITIONER'S MOTION FOR ATTORNEY'S FEES AND  
COSTS/TRUSTEE'S MOTION TO STRIKE OR IN THE  
ALTERNATIVE TAX COSTS**

This is a probate matter brought by the Wendy Peeples aka Wendy J. Ostrom ("Petitioner") for Instructions for Trustee Distribution and For Accounting and Compelling the Redress of Breach of Trust against the Successor Trustee Dawn J. Ostrom ("Trustee").

Now before the Court is a motion for attorney's fees and costs brought by Petitioner. Simultaneously, there is a motion to strike or tax costs brought by Trustee.

Both motions are opposed.

The petition that initiated this action was filed on March 17, 2025. On June 6, 2025, the Court held the hearing on the petition. Trustee was present but her counsel was not. During the hearing, the Court noted that Ostrom did not know where her attorney was and further that her counsel, Ms. Shafer, had a history of missed appearances. The Court further noted that Ms. Shafer had failed to file any written objections. Thereafter, the Court entered an Order granting the petition, removing Trustee from her fiduciary duties, and charging costs and fees to Trustee. Attorney Shafer was served with the Order by mail and e-mail on June 13, 2025. New counsel has subsequently substituted as attorney of record for Trustee.)

On August 29, 2025, the Court denied Objector's motion for relief from default and motion for a new trial. (These rulings are on appeal.)

The June 13, 2025, Order provided that Objector was to: 1) pay the Attorney's Fees and Costs incurred by Petitioner as a result of having to prepare and file this Petition, and 2) to be surcharged in a sum equal to the Attorney's Fees and Costs incurred by Petitioner.

Petitioner now moves for \$17,362.00 in attorney's fees and \$954.02 in costs. In addition to opposing the motion, Objector also moves to tax certain costs and fees.